

GAHC010007462020



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(Civil) 265/2020

1:HAKIM UDDIN KHANDAKAR @ HAKIM ALI KHANDAKAR
S/O LATE KHABIR UDDIN KHANDAKAR, R/O VILL-KAHARA PATHAR,
MOUZA-BHAWANIPUR, P.S.-BARPETA, DIST-BARPETA, ASSAM

VERSUS

1:THE UNION OF INDIA AND 5 ORS.
THROUGH THE SECRETARY TO THE GOVERNMENT OF INDIA, MINISTRY
OF HOME AFFAIRS, GRIHA MANTRALAYA, NEW DELHI

2:THE STATE OF ASSAM
THROUGH THE SECRETARY TO THE GOVERNMENT OF ASSAM
HOME DEPARTMENT
DISPUR
GUWAHATI-6

3:THE ELECTION COMMISSION OF INDIA
REPRESENTED BY THE CHIEF ELECTION COMMISSIONER OF INDIA
NIRVACHAN SADAN ASHOKA ROAD
NEW DELHI-110001

4:THE STATE CO-ORDINATOR
NATIONAL REGISTRATION OF CITIZEN
ASSAM
BHANGAGARH
GUWAHATI-781005

5:THE DEPUTY COMMISSIONER
BARPETA
P.O. AND DIST-BARPETA
ASSAM

PIN-781301

6:THE SUPERINTENDENT OF POLICE (BORDER)
BARPETA
P.O.-BARPETA
DIST-BARPETA
ASSAM
PIN-78130

Advocate for the Petitioner : MR. L R MAZUMDER

Advocate for the Respondent : ASSTT.S.G.I.

BEFORE
HONOURABLE MR. JUSTICE SUMAN SHYAM
HONOURABLE MR. JUSTICE PARTHIVJYOTI SAIKIA

ORDER

Date : 18-05-2020

Suman Shyam, J

Heard Mr. I. Hussain, learned counsel for the applicant. Also heard Ms. G. Hazarika, learned counsel appearing for the Union of India and NRC Coordinator, Mr. A. Kalita, learned standing counsel representing Foreigners' Tribunal and Border Police, Assam and Ms. B. Das, learned counsel for the Election Commission of India.

The applicant herein was declared to be a foreigner of post 1971 stream by the impugned order dated 22-01-2019 passed by the learned Foreigners Tribunal No. 1st, Barpeta in connection with F.T. Case No. 174/2016.

Mr. Hussain, learned counsel for the applicant submits that pursuant to the impugned order passed by the learned Tribunal, the applicant had been arrested on 07-05-2019 and since then, he is in the detention centre at Goalpara. By referring to the documents

available on record, Mr. Hussain submits that the petitioner had produced the Voters List of 1966 containing the names of his parents as well as the Voters List of 1971 which includes the name of the petitioner along with his parents, besides other relevant documents, to establish his claim of citizenship. However, ignoring such vital documents, the learned Tribunal has erroneously rendered its opinion against the petitioner. Mr. Hussain further submits that the arrest and detention of the petitioner, on the teeth of the documents available on record, is wholly unsustainable in the eye of law.

Mr. Kalita, learned standing counsel, Foreigners Tribunal has also fairly submitted that considering the documents available on record and the length of detention undergone by the petitioner/ applicant, he would not oppose the prayer for release on bail made by the applicant.

In view of the above and considering the facts and circumstances of the case in its entirety, we direct that the petitioner be forthwith released from the detention centre upon furnishing a bond of Rs. 5000/- (Five Thousand) with one surety of like amount to the satisfaction of the Superintendent of Police (Border), Barpeta.

This order be carried out and complied with as expeditiously as possible but not later than 07 (seven) days from the date of receipt of a certified copy thereof.

I.A. stands disposed of.

JUDGE

JUDGE

GS

Comparing Assistant